

**25STCV20674 25STCV20674**

County: los-angeles  
Division: Civil Law and Motion  
Department: 506  
Hearing date: 2026-08-27  
Source URL:  
[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C506%2C08%2F27%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C506%2C08%2F27%2F2026)  
Source SHA-256: 0c439187ddd82f315672f56122df5efd9ae3e18c583adeebc863b064eb7dda28

Case Number: 25STCV20674 Hearing Date: August 27, 2026 Dept: 506

SUPERIOR  
COURT OF THE STATE OF CALIFORNIA  
  
FOR THE  
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

NYJHERI CARNELL, et al.,

Plaintiffs,

vs.

SIMONE 2015 LP, et al.,

Defendants.

)  
  
)  
  
)  
  
)  
  
)  
  
)

)

)

)

)

)

CASE NO.: 25STCV20674

[TENTATIVE] ORDER DENYING MOTION FOR LEAVE  
TO INTERVENE

Dept. 506

8:30 a.m.

August 27, 2026

On July 14, 2025, Plaintiffs filed this action against  
Defendants SIMONE 2015 LP ("SIMONE"), SRHT Property Management Company ("SRHT"),  
and John Stewart Company.

On August 3, 2026, Great American Insurance  
Co. ("Intervenor") filed a motion for leave to intervene and file a complaint-in-intervention.

For

mandatory intervention, a court must allow a nonparty to timely intervene in an  
action if a provision of law confers an unconditional right to intervene or if the  
person seeking intervention claims an interest relating to the property or transaction  
that is the subject of the action and that person is so situated that the disposition  
of the action may impair or impede that person's ability to protect that interest,  
unless that person's interest is adequately represented by one or more of the existing  
parties. (Code Civ. Proc., § 387, subd. (d)(1).) A court may allow permissive intervention if the  
person has an interest in the matter in litigation, or in the success of either  
of the parties, or an interest against both.

(Code Civ. Proc., § 387, subd. (d)(2).)

The court permits intervention when the following factors are met: (1) the

proper procedures have been followed; (2) the nonparty has a direct and immediate interest in the action; (3) the intervention will not enlarge the issues in the litigation; and (4) the reasons for the intervention outweigh any opposition by the parties presently in the action. (Siena Court Homeowners Ass'n v. Green Valley Corp. (2008) 164 Cal.App.4th 1416, 1428.)

Intervenor

is a liability insurer for Defendants SIMONE and SRHT, and it "is providing a defense to defendants in this matter, subject to a reservation of rights." (Motion at p. 3.) SRHT is a bankrupt partnership entity, and SIMONE

is no longer in business. (Id. at p. 6.) Intervenor believes that Plaintiffs will

assert SRHT's bankrupt status in an attempt to preclude SRHT and SIMONE from presenting a defense to Plaintiffs' claims and causes of action. (Ibid.) According to Intervenor, the proposed Complaint-in-Intervention "merely seeks to assert the same defenses to plaintiffs' claims and causes of action that SRHT and SIMONE would have asserted." (Id. at p. 7.)

The

proposed Complaint-in-Intervention contains a single cause of action for declaratory judgment. Intervenor "desires a declaration that it may intervene in this action to assert liability defenses that SRHT and/or its affiliated entity SIMONE may not be able to assert on their own behalf as a result of SRHT's bankruptcy proceedings so as to properly contest and limit any exposure that may be asserted against Great American in a judgment creditor action." (Proposed Complaint at p. 5, ¶ 20.)

If

the Court grants the motion, there is nothing left for the Complaint-in-Intervention. The Complaint-in-Intervention seeks only "a judgment that Great American may intervene in this action to litigate liability and defenses on behalf of its insureds, SRHT and SIMONE." (Proposed Complaint at p. 6, ¶ 1.) No other relief is requested.

Accordingly,

the motion for leave to intervene is DENIED without prejudice.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at [email protected] indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 27th day of August 2026

Hon. Thomas D. Long

Judge of the Superior  
Court